

1.

CASE #	CASE NAME	HEARING NAME
CVRI2204490	LAKE ELSINORE AIRPORT, LLC VS DE LA TORRE	MOTION TO VACATE DEFAULT JUDGMENT

Tentative Ruling: PROOF OF SERVICE: Proper

GRANTED

At the outset, the Court continued this motion and asked the parties to brief *Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868 (“*Standard Microsystems*”). The Court also allowed Plaintiff to provide a supplemental brief addressing the merits of Defendant’s motion. Supplemental briefs have been filed by both parties.

Plaintiff does little to address *Standard Microsystems* in its supplemental brief. Plaintiff contends that it disagrees that the ruling in *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 846 (“*Evan Zohar*”), which limited *Standard Microsystems* in part, limited the ruling. It appears to argue that *Even Zohar* overruled *Standard Microsystems* in its entirety. However, it fails to articulate why or point to any authority to support this assertion.

Plaintiff argues that *Standard Microsystems* is factually different from this matter. However, the Court in *Standard Microsystems* specifically found that a motion to set aside default and a motion to vacate themselves are different types of motions and do not seek the same order as required under CCP § 1008. (*Standard Microsystems, supra*, 179 Cal.App.4th at 890-893.) As such, the fact that there may be factual differences between the two cases does not appear to be important due to this reasoning.

Plaintiff argues that *Standard Microsystems*’ holding is contrary to the weight of authority but fails to cite any authority to support this assertion. Plaintiff also asserts that *Standard Microsystems* should not be followed because its holding is contrary to the rule set forth in *Blue Mountain Development Co. v. Carville* (1982) 132 Cal.App.3d 1005, 1013-1013 (“*Blue Mountain*”). Plaintiff does not discuss the findings in *Blue Mountain*, the rule at issue, or how it applies to this matter. The Court in *Standard Microsystems* does mention *Blue Mountain*. It provides that *Blue Mountain* came up with a court-made rule that when bringing a motion governed by CCP § 1008, the moving party was required to justify the failure to present new or different facts, circumstances, or law sooner. (*Standard Microsystems Corp., supra*, 179 Cal.App.4th at 895-896.) This rule has no impact on the Court’s finding regarding whether a motion to vacate constitutes a motion for reconsideration of a motion to set aside default. Due to this, Plaintiff’s arguments do not establish that *Standard Microsystems* is not applicable.

In Defendant’s supplemental brief, it argues that *Standard Microsystem* is applicable and points out that Plaintiff’s arguments are inadequate. As discussed below, it appears that *Standard Microsystems* applies.

Defendant contends that he had no notice of this lawsuit until default was entered. (Declaration of Peter De la Torre, ¶ 9.) He contends that he did not attempt to evade service. (*Id.* at ¶ 12.) He briefly discusses the attempts set forth in the proof of service made by the process server to serve him and asserts that he believes that the process server was attempting to serve the wrong suite address. (*Id.* at ¶¶ 5 and 7.) He states that no one at his business address matches the description of the individual served via substitution of service. (*Id.* at ¶ 7(e).) This evidence appears to indicate a lack of knowledge and service by Plaintiff. This evidence also appears nearly identical to the evidence provided by Defendant in support of the motion to set aside entry of default. Based on the minute order for the motion to set aside default, it appears that Judge Firetag did not find the evidence provided sufficient or convincing.

In Plaintiff's supplemental brief, it points to the evidence submitted in opposition to Defendant's second motion to set aside default. The Court takes judicial notice of these documents. (Plaintiff's Opposition to Defendant's Motion to Set Aside Default, filed 6/25/24.) Plaintiff argues that its process server attempted to serve Defendant eleven times. (Declaration of Micheal G. York, Exhibit A.) It asserts that Defendant attempted to evade service. It points to notations by the process server in its declaration of due diligence that when it attempted to serve Defendant, vehicles were located outside Defendant's office location and no one answered. (*Id.*) The process server also indicates that on one occasion people were clearly inside the building, but no one answered the door. (*Id.*) It also asserts that substitution of service was proper because the process server indicates that Defendant's office assistant was served. (*Id.*) It should be noted; however, Exhibit A does not appear to be properly authenticated. Counsel does not appear to lay proper foundation to authenticate the documents attached. As no objection is made and the Court agrees with Judge Firetag's assessment that Defendant's declaration is not believable or sufficient, on balance it appears there is a lack of proper service.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2205254	SILL VS LENDING BEE, INC	MOTION FOR SUMMARY JUDGMENT ON 2ND AMENDED COMPLAINT

Tentative Ruling: PROOF OF SERVICE: Proper

GRANT the motion for summary judgment of the 1st, 3rd – 7th, and 11th causes of action.

No opposition and separate statement filed by Responding Party.